Gmail

Alex Aders [redacted]

Question about the settlement agreement

4 messages

Alex Aders [redacted] dim. 1 nov. à 4:52 PM
À : Leora Jackson <leora.jackson@utoronto.ca>, Heather Skelton <heather.skelton@utoronto.ca>

Dear Mrs. Jackson and Mrs. Skeleton,

I have a question about one section of the settlement agreement, "The Releaser agrees to keep all terms of this Release, in strict confidence and shall not disclose to anymore, except his legal advisors, such information".

Is there any time limit on this clause? The clause appears to be quite broad and implies to extend a lifetime. However, this section was something that we never discussed during our phone conversation. The truth is that I have been feeling a bit uncomfortable with the agreement itself and the conditions when I signed. I was under tremendous pressure to sign, from my family out of fear of a mental health crisis and my prior medical history, and I was simultaneously planning an international relocation while having flare ups due to my traumatic brain injury. I warned Mrs. Jackson about these flare-ups just 2 days prior before I signed, hoping the pressure from the court case itself would relieve the stress. Unfortunately, I have been having flare ups again and revisiting the case mentally on why I did not ask for any damages related to pain and suffering that occurred during the shutdown, the institutional misconduct relating to how it was handled behind the scenes, and essentially being forced to fight a billion dollar institution as a pro se while coping with the aftermath of my car accident.

I would like to publish a memoir on the case as a matter of public interest. Since I received only compensation related to the actual dispute, court costs, and interest, I would request that this confidential clause be omitted from the agreement or renegotiated. I gave up a lot of potential claims. For example, direct claims I could have made against specific individual employees such as Elizabeth Rees-Johnson and Michael Cassidy specifically for their handling of the dispute and enforcing a policy that made a no-refund exception even in the case of a disability, not warning students about the shutdown prior to its collapse and a blocked notification to students, and threatening campus police in the case of defamation despite having ignored over a year of non-payments which directly caused the events that unfolded. There are also legitimate human rights claims that could have been made. Even complaints against the lawyers themselves that advised this unethical policy, where the only realistic pathway to a refund was self-representation in small claims court, which required learning international procedures that many plaintiffs neither had the time nor persistence to follow through. Given the two-year timeline for file for small courts, there are still students out there who likely have a legitimate claim to file and might need advice on how to do so. The terms of the release are a matter of public interest because it shows how the pressure of delay could cause a plaintiff to accept a settlement even with a winning case and significant amounts of evidence. Finding representation on this case could have cost over 10 thousand dollars out of pocket while the institution has lawyers on retainer. There were undeniably unequal power dynamics going into negotiations. I needed to close the case because it was directly affecting my mental health. I formally request to drop the confidentiality clause due to lack of additional compensation to honor this agreement beyond what I was already owed due to institutional negligence.

Sincerely,
Alexander Aders

Leora Jackson <leora.jackson@utoronto.ca> mer. 4 nov. à 11:08 PM
À : Alex Aders [redacted], Heather Skelton <heather.skelton@utoronto.ca>

Dear Mr. Aders,

I'm sorry to hear about your current flare ups. If you want or need to speak with your healthcare provider about the

settlement, the University would not consider that a breach of the confidentiality clause in the release, as long as you explained to your healthcare provider that the matter is confidential and you would expect them to maintain that confidentiality.

In response to your question, the University does not revisit settlement agreements once signed. I encourage you to seek legal advice for yourself about your concerns if you feel that might be helpful for you. To be clear, the University's view is that the release is not time-limited and you may not share the details of the settlement as set out in the release. Those details are confidential, and the promise of confidentiality was an important consideration for the University in settling your matter with you. However, the University's view is that you are not precluded from speaking or writing about other aspects of your interactions with the University.

Regards,

Leora

LEORA JACKSON (she/her)
Director & Senior Legal Counsel

Office of Discipline Counsel
& Office of University Counsel
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If you are attending a planned meeting and require accommodation(s) due to disability, please contact Stephanie Wallace who will work with you to make appropriate arrangements.

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[Texte des messages précédents masqué]

Alex Aders [redacted] ven. 6 nov. à 8:51 PM
À : Leora Jackson <leora.jackson@utoronto.ca>

Dear Ms. Jackson,

This is completely unacceptable. We never made this promise over the phone and I feel like this clause is a direct violation of my U.S. Constitution rights. I was never paid any premium for a lifetime commitment to confidentiality. The circumstances of when I signed were under duress. My position is that this settlement is unconscionable, unconstitutional, and disproportionate to the claim. I was seeking a refund, and costs for pursuing the claim. If the promise of confidentiality was an important consideration, why was it not a topic during the negotiations?

Sincerely,
Alexander Aders

Le mer. 4 nov. 2026 à 11:08 PM, Leora Jackson <leora.jackson@utoronto.ca> a écrit :
[Texte des messages précédents masqué]

Leora Jackson <leora.jackson@utoronto.ca> lun. 9 nov. à 5:57 PM
À : Alex Aders [redacted]

Hi Mr. Aders,

I cannot give you legal advice. If you have questions about the settlement, I encourage you to seek that advice from a lawyer.

Regards,

Leora

[Texte des messages précédents masqué]